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NGUYEN v. 12828 VERDURA LLC, ET AL.

CASE NO.: 25NWCV02896

HEARING: Thursday, July 30, 2026, at 9:30 AM

I.

Defendants 12828 VENDURA LLC; CHRISTIE SHOZI;
and ANN THI NGUYEN Demurrer to Plaintiff's First Amended Complaint is SUSTAINED
in part without leave to amend.

II.

Defendants 12828 VENDURA LLC; CHRISTIE SHOZI;
and ANN THI NGUYEN Motion to Strike Plaintiff's Complaint is GRANTED in part
with 30 days leave to amend.

III.

Plaintiff's request for sanctions is DENIED.

Moving Party to give notice.

Background

On August 13, 2025, Plaintiff ANDREW NGUYEN ("Plaintiff")
filed this real property action against Defendants 12828 VENDURA LLC; CHRISTIE
SHOZI aka CHRISTIE VALADEZ; ANN THI NGUYEN ("Defendants") and DOES 1 through

10, inclusive.

On March 9, 2026, Plaintiff filed the operative First Amended Complaint (“FAC”).

The FAC Complaint alleges the following causes of action:

1.

Quiet Title to Real Property;

2.

Intentional Misrepresentation;

3.

Declaratory Relief;

4.

Preliminary and Permanent Injunction;

5.

Quantum Meruit; and

6.

Damages

On April 21, 2026, Defendants filed the instant Demurrer and Motion to Strike.

First Cause of Action – Quiet Title

A duly executed and recorded deed is presumptively valid, the owner of the legal title to property is presumed to be the owner. (Evid. Code § 662.) This presumption of ownership may be rebutted only by clear and convincing proof. (Id.)

Here, the 2011 Deed creates a rebuttable presumption that Defendants’ own the Subject Property. Plaintiff alleges that he had “no notice, no agreement, no consent nor any understanding that he legitimately agreed to transfer the entire Property by Deed from Plaintiff Andrew Nguyen to Defendants Ann Thi Nguyen and Christie Valadez...” (Complaint ¶ 24.)

Plaintiff alleges he “had zero knowledge that on or about 5/13/2011, one week after acquiring his home that Plaintiff had signed over The Property to Defendants Ann Thi Nguyen and Christie Valadez under a Quitclaim Transfer Deed document number 11-0682659.” (FAC ¶ 25.) Plaintiff alleges he “received zero consideration for the Quitclaim Deed.” (FAC ¶ 27.) The Quitclaim Deed listed both “valuable consideration was received and no consideration was given-bonafide gift which is contradictory.” (FAC ¶ 27.) Plaintiff alleges he was “misled into believing it [sic] was simply signing a document memorizing the loan that Defendant/sister/Anna Thi Nguyen had given to the Plaintiff to assist in the purchase of The Property.” (FAC ¶ 28.)

The Court finds Plaintiff alleged enough facts to rebut Evid. Code § 662’s presumption at the pleading stage.

Statute of Limitations

The statute of limitations for any relief on the grounds of fraud or mistake is three years. (CCP § 338(d).) The cause of action is not deemed to have accrued until the discovery, by the aggrieved party or the aggrieved party’s agent, of the facts constituting the fraud or mistake. (Id.)

Plaintiff seems to allege he did not discover the alleged fraud until 2025, when Defendants transferred The Property without Plaintiffs knowledge or consent. (FAC ¶ 31,50.) Thus, Plaintiff’s cause of action falls within the statute of limitations.

Defendants’ Demurrer is OVERRULED against Plaintiff’s First Cause of Action.

Second Cause of Action – Intentional Misrepresentation

“The elements of fraud, which give rise to the tort action for deceit, are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or ‘scienter’); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.” (Golden Eagle Land Investment, L.P. v. Rancho Santa Fe Assn. (2018) 19 Cal.App.5th 399, 428.)

“In California, fraud must be pled specifically; general and

conclusory allegations do not suffice. [Citations.] 'Thus " "the policy of liberal construction of the pleadings ... will not ordinarily be invoked to sustain a pleading defective in any material respect.' " [Citation.] [¶] This particularity requirement necessitates pleading facts which show how, when, where, to whom, and by what means the representations were tendered.' [Citation.]" (Lazar v. Superior Court (1996) 12 Cal.4th 631, 645.)

Plaintiff alleges, "Defendants, and each of them, knew the statements made by them were false and designated to mislead [sic] Plaintiff on 5/10/2011, one week after purchasing The Property by having Plaintiff sign a Quitclaim Deed." (FAC ¶ 48.) Plaintiff further alleges, "One week before being flimflammed by his Defendant/sister, Plaintiff had just borrowed \$263,775 from the Federal Housing Administration (FHA) to close the transaction. Plaintiff did not know and would not have suspected that Defendant/his sister Nguyen and Defendant/Shozi intended to defraud Plaintiff by having Plaintiff sign a Quitclaim Deed and failing to disclose the true ramifications of the Deed." (FAC ¶ 50.)

Plaintiff also alleges, "Defendants, and each of them, also made false statements to the lender by accessing Plaintiffs mortgage company, paid off his loan and concealed material facts about the entire material misrepresentation and documents that had Plaintiff sign with the intention of stealing the property from Plaintiff." (FAC ¶ 53.) Lastly, Plaintiff alleges, "Plaintiff justifiably and reasonably relied on the Defendants representations as Plaintiff had just secured a Federal Housing Administration (FHA) first time buyer loan only in his name, Plaintiff has solely paid the monthly mortgage payments for the property since the inception of the transaction on 5/3/2011." (FAC ¶ 55.)

The Court finds Plaintiff adequately pled his Second Cause of Action and thus, Defendants' Demurrer is OVERRULED.

Third Cause of Action – Declaratory Relief

A Complaint for declaratory relief must demonstrate an actual controversy involving justiciable questions relating to the rights or obligations of a party. (Brownfield v. Daniel Freeman Marina Hospital (1989) Cal.App.3d 405, 410.)

Here, there is an actual controversy as Plaintiff's First and Second Cause of Action survive. Further, as there is a dispute in title and ownership, the Court does not believe a declaratory relief cause of action is duplicative and unnecessary. Defendants' Demurrer is OVERRULED as to Plaintiff's Fourth Cause of Action for Declaratory Relief.

Fourth Cause of Action – Injunctive Relief

Injunctive Relief is a remedy and not, in itself, a cause of action. (Allen v. City of Sacramento (2015) 234 Cal.App.4th 41, 65; citing Roberts v. Los Angeles County Bar Assn. (2003) 105 Cal.App.4th 604, 618; McDowell v. Watson (1997) 59 Cal.App.4th 1155, 1159.)

Plaintiff's Injunctive Relief cause of action is improper. Defendants Demurrer to Plaintiff's injunctive relief cause of action is SUSTAINED without leave to amend.

Motion to Strike

CCP § 436 provides that the Court may, upon a motion made pursuant to Code of Civil Procedure section 435, or at any time within its discretion and upon terms it deems proper, "strike out any irrelevant, false, or improper matter inserted in any pleading" and/or "strike out all or part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (CCP § 436, subd. (a).) In passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike, all parts in their context, and assume their truth. (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.)

Punitive Damages

A motion to strike is the procedure to attack a purportedly improper remedy such as unjustified punitive damages. (Venice Town Council, Inc. v. City of Los Angeles (1996) 47 Cal.App.4th 1547, 1561-1562.) A complaint including a request for punitive damages must also include allegations showing that the plaintiff is entitled to such an award. (Clauson v. Superior Court, supra, 67 Cal.App.4th at

p. 1255.) A claim for punitive damages cannot be pleaded generally and allegations that a defendant acted "with oppression, fraud and malice" toward plaintiff are insufficient legal conclusions to show that the plaintiff is entitled to an award of punitive damages. (Brousseau v. Jarrett (1977) 73 Cal.App.3d 864, 872.) Specific factual allegations are required to support a claim for punitive damages. (Ibid.)

When the defendant is a corporation, "the oppression, fraud, or malice must be perpetrated, authorized, or knowingly ratified by an officer, director, or managing agent of the corporation." (Wilson v. Southern California Edison Company (2015) 234 Cal.App.4th 123, 164; see Civ. Code § 3294(b).)

Since Plaintiff's Intentional Misrepresentation claim survives, the Court finds Plaintiff's allegations are sufficient to support punitive damages. Further, since Plaintiff alleges Defendant Ann Thi Nguyen is a co-owner of 12828 Verdura LLC and Defendant Ann Thi Nguyen made misrepresentations to Plaintiff, Plaintiff's allegations support punitive damages against 12828 Verdura LLC.

Defendant's request to strike punitive damages is DENIED.

Civ. Code § 1951.2

Civ. Code § 1951.2 applies "if a lessee of real property breaches the lease and abandons the property before the end of the term or if his right to possession is terminated by the lessor because of a breach of the lease, the lease terminates." (Id.)

Plaintiff alleges "There is no written and or oral Landlord/Tenant lease agreement between Plaintiff and Defendants." (FAC ¶ 35.) Thus, Defendants' request to strike Plaintiff's request for Civ. Code § 1951.2 damages is GRANTED.

Attorney's Fees

"In the absence of some special agreement, statutory provision, or exceptional

circumstances, attorneys' fees are to be paid by the party employing the attorney." (Prentice v. North American Title Guaranty Corp., Alameda Division, (1963) 59 Cal.2d 618, 647.)

Plaintiff fails to demonstrate why he is entitled to attorney's fees. Defendants' request to strike Plaintiff's request for attorney's fee is GRANTED.

Conversion Allegation

Plaintiff alleges, "Beginning on or about 5/13/2011, Defendants, and each of them, wrongfully and unlawfully converted The Property." (FAC ¶ 70.)

Conversion, however, applies to personal property, "To plead a cause of action for conversion, one must allege (1) the plaintiff's ownership or right to possession of personal property; (2) defendant's disposition of the property inconsistent with plaintiff's rights; and (3) resulting damages." (Fremont Indemnity Co. v. Fremont General Corp. (2007) 148 Cal.App.4th 97, 119.)

Further, Plaintiff removed his conversion cause of action. Plaintiff's improper conversion allegation is STRICKEN.

Quantum Meruit Claim

Plaintiff pleads a quantum meruit cause of action in the FAC's caption. However, Plaintiff does not plead a separate, properly labeled quantum meruit cause of action. The caption of the Complaint constitutes no part of the statement of the cause of action. (Falahati v. Kondo (2005) 127 Cal.App.4th 823, 829.)

Each separately stated cause of action, count, or defense must specifically state:

(1) Its
number;

(2) Its
nature;

(3) The party asserting if it more than one party is represented on the pleading; and

(4) The party or parties to whom it is directed.

(California Rule of Court, Rule 2.112(1)-(4).)

Plaintiff's Quantum Meruit claim fails to conform with the rules of this state and thus, Defendants' Motion to Strike is GRANTED. However, the Court believes Plaintiff can easily fix this formatting issue.

Leave to Amend

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the Plaintiff to show the Court that a pleading can be amended successfully. (Lewis v. Youtube, LLC (2015) 244 Cal.App.4th 118, 226.)

Under the Court's liberal policy of granting leave to amend, the Court grants Plaintiff 30 days leave to amend the FAC to fix the issues presented in Defendants' Motion to Strike.

Defendants' Demurrer to Plaintiff's Injunctive Relief Cause of Action is SUSTAINED without leave to amend.

Sanctions

By presenting a motion to the Court, an attorney affirms that the claims, defenses, and other legal contentions therein are warranted by existing law or by a nonfrivolous argument for the extension, modification, or reversal of existing law or the establishment of new law. (CCP § 128.7(b)(2).) In a motion for sanctions, the moving party must show the parties conduct in

asserting the claim was objectively unreasonable. A claim is objectively unreasonable if any reasonable attorney would agree that it is totally and completely without merit. (In re Marriage of Flaherty (1982) 31 Cal.3d 647, 650.) Sanctions should not be imposed except in the clearest of cases. (Ibid.)

The Court notes Defendants' lack of meet and confer declaration. However, given the ruling above, Defendants' Demurrer and Motion to Strike clearly is not frivolous or objectively unreasonable.

Plaintiff's request for sanctions is DENIED.

Conclusion

Defendants' Demurrer is OVERRULED against Plaintiff's Quiet Title, Intentional Misrepresentation, and Declaratory Relief Causes of Action.

Defendants' Demurrer is SUSTAINED without leave to amend as to Plaintiff's Injunctive Relief Cause of Action.

Defendants' Motion to Strike is DENIED as to Punitive Damages and GRANTED as to Civ. Code § 1951.2 damages; attorney's fees, conversion allegations, and quantum meruit allegations with 30 days leave to amend.

Plaintiff's request for sanction is DENIED.